

STATE OF NEW YORK

4989--B

2025-2026 Regular Sessions

IN SENATE

February 14, 2025

Introduced by Sens. HARCKHAM, MAY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- reported favorably from said committee and committed to the Committee on Consumer Protection -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, the general business law and the public authorities law, in relation to requiring utility service providers to disclose planned rate increases to consumers within a certain amount of time

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The public service law is amended by adding a new section
2 28 to read as follows:

3 § 28. Notice of planned rate increase for services. 1. Any gas corpo-
4 ration, electric corporation, water corporation or municipality, steam
5 corporation or telephone corporation shall be required to disclose to a
6 consumer any planned rate increase for services being rendered to such
7 consumer, within thirty days before such planned rate increase takes
8 effect.

9 2. (a) Any notification of a planned rate increase pursuant to this
10 section shall be communicated to the consumer in a clear and conspicuous
11 method which is sufficient to alert such consumer that such planned rate
12 increase is occurring.

13 (b) A consumer shall be notified in a separate communication outside
14 of any billing statement via phone, electronic mail, letter, text

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 message or any combination thereof that includes a statement of the
2 following:

3 (i) the amount of the rate increase;
4 (ii) the effective date of the increase; and
5 (iii) where customers can get additional information pertaining to the
6 rate increase.

7 (c) Inclusion of such notification as part of any billing statement
8 shall not constitute compliance with this section.

9 3. Any gas corporation, electric corporation, water corporation or
10 municipality, steam corporation or telephone corporation shall provide
11 with any notification of a planned rate increase information on how a
12 consumer can contact the service provider.

13 § 2. The general business law is amended by adding a new section 399-
14 ww to read as follows:

15 § 399-ww. Notice of planned rate increases for cable and internet
16 services. 1. Any cable television company, internet service provider as
17 defined by section three hundred ninety-four-cc of this article, or
18 voice over internet protocol or VoIP provider as defined by section
19 three hundred forty-nine-b-1 of this chapter shall be required to
20 disclose to a consumer any planned rate increase for services being
21 rendered to such consumer, within thirty but no less than seven days
22 before such planned rate increase takes effect.

23 2. (a) Any notification of a planned rate increase pursuant to this
24 section shall be communicated to the consumer in a clear and conspicuous
25 method which is sufficient to alert such consumer that such planned rate
26 increase is occurring.

27 (b) A consumer shall be notified in a separate communication outside
28 of any billing statement via phone, electronic mail, letter, text
29 message or any combination thereof that includes a statement of the
30 following:

31 (i) the amount of the rate increase;
32 (ii) the effective date of the increase; and
33 (iii) where customers can get additional information pertaining to the
34 rate increase.

35 (c) Inclusion of such notification as part of any billing statement
36 shall not constitute compliance with this section.

37 3. Any cable television company, internet service provider, or VoIP
38 provider shall provide with any notification of a planned rate increase
39 information on how a consumer can contact the service provider and shall
40 also include a mechanism to allow for a consumer to cancel their service
41 altogether.

42 § 3. Section 1020-cc of the public authorities law is amended by
43 adding a new subdivision 3 to read as follows:

44 3. Service providers shall be subject to the provisions of section
45 twenty-eight of the public service law.

46 § 4. This act shall take effect on the one hundred eightieth day after
47 it shall have become a law.